FOOD SAFETY & STANDARDS ACT, 2006

HPSC FOOD SAFETY OFFICER
MASTER NOTES

From first principles → section-wise mastery → enforcement → penalties → PYQ strategy

EXAM APPROACH
Designed for first-time learners. Statutory sections are linked to the actual FSO workflow, high-yield numbers, common traps and question patterns.

Based primarily on the uploaded Food Safety and Standards Act, 2006 bare Act. Exam-oriented interpretation is presented separately as study guidance.

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02 Chapter I — Preliminary & Definitions
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PART 1 | UNDERSTANDING THE ACT

1. What problem did this Act solve?

Before the Food Safety and Standards Act, 2006, food regulation was spread across multiple laws and orders. The Act's central architecture is to consolidate food laws, establish FSSAI, prescribe science-based standards and regulate food manufacture, storage, distribution, sale and import.

> **MEMORY HOOK**
> Many food laws → one integrated framework → FSSAI + State enforcement → standards → safe & wholesome food.

The five-layer mental model



PART 2 | CHAPTER I — PRELIMINARY & DEFINITIONS

Sections 1–3

Section 1: Short title, extent and commencement. The Act is the Food Safety and Standards Act, 2006; it extends to the whole of India and provisions commence by notification.

Section 2: Parliament declares it expedient in the public interest that the Union should take control of the food industry.

Section 3 — Definitions

Definitions are a major FSO examination area because small statutory distinctions can change the answer.

Term	Exam-ready meaning
Adulterant	Material which is or could be employed to make food unsafe, sub-standard, misbranded or containing extraneous matter.

Term	Exam-ready meaning
Consumer	Persons and families purchasing and receiving food to meet their personal needs.
Food	Broad statutory category including processed/unprocessed food, infant food, packaged drinking water, alcoholic drink, chewing gum and specified water used in manufacture/preparation/treatment.
Food Business	Any undertaking, profit or non-profit, public or private, involved in manufacture, processing, packaging, storage, transportation, distribution, import or sale of food.
Food Business Operator (FBO)	Person by whom food business is carried on/owned and who is responsible for compliance.
Food Safety	Assurance that food is acceptable for human consumption according to its intended use.
Food Safety Officer	Officer appointed under Section 37.
Hazard	Biological, chemical or physical agent in food, or condition of food, with potential to cause an adverse health effect.
Misbranded Food	Food whose identity, description, presentation, labelling or claims are false, misleading or deceptive in the statutory circumstances.
Sub-standard Food	Food that does not meet specified standards but does not render the food unsafe.
Unsafe Food	Food whose nature, substance or quality is affected so as to render it injurious to health.
Sale	Broadly includes cash, credit, exchange, wholesale/retail, offer/exposure/possession for sale and attempt to sell.

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Know the difference: sub-standard ≠ unsafe; misbranded = identity/representation problem; unsafe = health problem.

Risk concepts

Risk combines the probability of an adverse health effect with the severity of that effect.

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Risk Analysis
↓
Risk Assessment + Risk Management + Risk Communication
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Risk Assessment
↓
Hazard identification
↓
Hazard characterisation
↓
Exposure assessment
↓
Risk characterisation
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MEMORY HOOK
Food safety vocabulary: Biological + Chemical + Physical = the three classic hazard categories.

PART 3 | CHAPTER II — FSSAI

Sections 4–17

Section 4 — Establishment of FSSAI

The Central Government establishes the Food Safety and Standards Authority of India. It is a body corporate with perpetual succession and a common seal, capable of holding property, contracting and suing/being sued. Headquarters: Delhi.

Section 5 — Composition

Component	Number / point
Chairperson	1
Members	22
Women	At least one-third of the 22 members
Government representatives	7
Industry	2
Consumer organisations	2
Food technologists/scientists	3
States/UTs by zones	5
Farmers' organisations	2
Retailers' organisations	1

MEMORY HOOK
22 members + Chairperson. Chairperson age ceiling = 65; other member = 62.

Sections 6–8 — Selection, term and removal

- Selection Committee is chaired by the Cabinet Secretary.
- Chairperson/members other than ex-officio members: 3-year term; eligible for another 3 years.
- Chairperson maximum age: 65 years; member maximum age: 62 years.
- Removal grounds include insolvency, specified conviction, incapacity, prejudicial financial/other interest and abuse of position against public interest.

Sections 9–10 — Officers and CEO

The Chief Executive Officer is not below the rank of Additional Secretary to the Government of India, serves as Member-Secretary and handles day-to-day administration, programmes, implementation, budget and administrative control.

Sections 11–15 — Advisory and scientific machinery

The Central Advisory Committee brings together industry, agriculture, consumers, research bodies, laboratories, Commissioners of Food Safety and the Chairperson of the Scientific Committee. It must

meet at least three times a year.

Scientific Panels provide specialist advice; the Scientific Committee coordinates scientific opinion and handles cross-cutting issues.

Section 16 — Functions of FSSAI

FSSAI regulates and monitors food manufacture, processing, distribution, sale and import to ensure safe and wholesome food. Its functions include standards, additive/contaminant/pesticide-residue limits, imported-food controls, laboratory recognition, sampling and analysis, risk assessment, scientific advice, emerging-risk surveillance, crisis management, consumer information, training and international/Codex work.

Section 18 — General principles preview

Food regulation is science-based, risk-based, proportionate, transparent and protective of human health and consumer interests.

PART 4 | CHAPTER III — GENERAL PRINCIPLES

Section 18 — Core principles

- Protect human life and health and consumer interests, while considering fair trade practices.
- Base risk management on risk assessment and relevant factors.
- Apply a precautionary approach where possible harmful effects are identified but scientific uncertainty remains.
- Measures should be proportionate and not more trade-restrictive than necessary.
- Provisional measures should be reviewed within a reasonable period.
- Public should be informed when reasonable grounds indicate that food may pose a risk.
- If one food in a batch/lot/consignment fails safety requirements, the whole batch/lot/consignment is presumed non-compliant until contrary evidence.
- Scientific risk assessment must be independent, objective and transparent.

MEMORY HOOK
Risk assessment = 4 steps. Risk analysis = 3 components.

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Urgency involving food safety/public health can justify regulation without ordinary consultation; such emergency regulation is limited to the statutory period.

PART 5 | CHAPTER IV — ARTICLES OF FOOD

Sections 19–24

Section	Core rule
19	Food additives and processing aids must be permitted under the Act/regulations.

Section	Core rule
20	Contaminants, natural toxic substances, toxins and heavy metals must not exceed prescribed limits.
21	Pesticide, veterinary-drug, antibiotic and other specified residues must remain within prescribed tolerance limits.
22	Special categories such as novel/GM/irradiated/organic/special dietary/functional/nutraceutical/health-supplement/proprietary foods are regulated.
23	Packaging and labelling must comply with prescribed requirements and must not be false or misleading.
24	Advertisements must not be misleading/deceptive; efficacy claims require adequate scientific justification.

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Section 23 = labelling/packaging. Section 24 = advertisement/unfair trade practice. Do not interchange them.

Section 25 — Imports

Food imports must comply with the Act and cannot include unsafe, misbranded, sub-standard or prohibited/non-compliant food, or food requiring a licence where the required licence is absent.

PART 6 | CHAPTER VI — FBO RESPONSIBILITIES

Sections 26–28

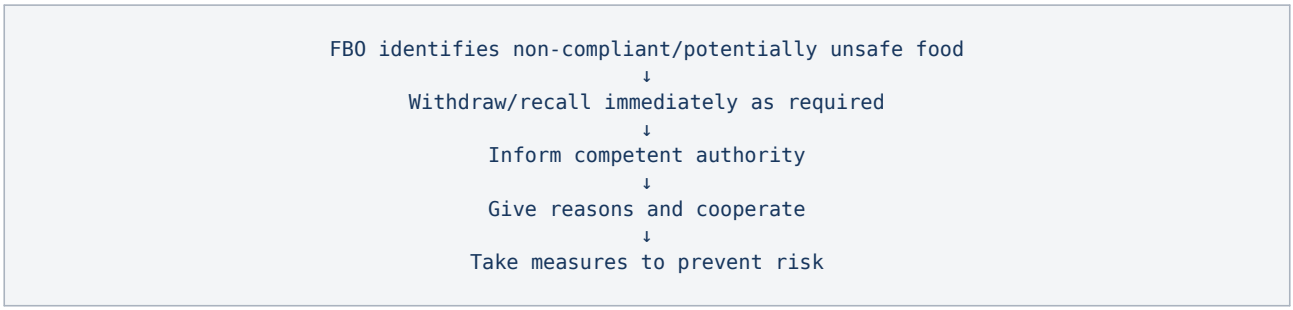
Section 26 — Responsibilities of FBO

Every FBO must ensure that food satisfies the Act, rules and regulations at all stages under its control. An FBO must not manufacture, store, sell or distribute prohibited or non-compliant food and must comply with prescribed licensing/registration requirements.

Section 27 — Liability

Operator	Typical liability focus
Manufacturer / packer	Liability for food failing statutory requirements in the circumstances specified.
Wholesaler / distributor	Includes expiry, unsafe/misbranded food, improper storage, unidentifiable source and knowingly receiving unsafe food.
Seller	Includes expired food, unhygienic handling, misbranding, unidentifiable source and knowingly receiving unsafe food.

Section 28 — Food recall



PART 7 | CHAPTER VII — ENFORCEMENT

Sections 29–42

Section 30 — Commissioner of Food Safety

The Commissioner is appointed by the State Government and oversees state implementation. Functions include public-health prohibitions, surveys, training, uniform implementation and prosecution sanction for offences punishable with imprisonment.

Section 31 — Licence & registration



No person may commence/carry on food business except under the required licence, subject to the registration route for petty food businesses. If a licence application is neither granted nor rejected within two months, the statutory consequences in Section 31 apply.

Section 32 — Improvement Notice

Issued by the Designated Officer when an FBO has failed to comply. It specifies the grounds, failure, corrective measures and a reasonable compliance period. The period cannot be less than 14 days. Non-compliance can lead to suspension and, after due process, cancellation.

Sections 33–34 — Prohibition

Instrument	Core idea
Section 33 — Prohibition Order	Court-based prohibition following conviction where health risk exists.
Section 34 — Emergency Prohibition	Urgent action where a health-risk condition requires emergency intervention.

Section 36 — Designated Officer

Appointed by the Commissioner of Food Safety; not below the rank of Sub-Divisional Officer. There is a Designated Officer for each district. Core functions: licensing, prohibition of non-compliant food, receiving samples/reports, prosecution-related action, records and complaint investigation.

Section 37 — Food Safety Officer

The Commissioner of Food Safety appoints qualified Food Safety Officers by notification for assigned local areas.

Section 38 — Powers of FSO

- Take samples of food/substances intended for sale or found on relevant premises where evidence may be required.
- Seize food appearing to contravene the Act/regulations.
- Enter and inspect premises where food/adulterant is manufactured, stored, exhibited or sold.
- Pay the usual public-sale rate for a sample taken.
- Destroy perishable food after written notice where it is deteriorated and unfit for human consumption.
- Exercise additional seizure/document/witness powers in accordance with the statutory procedure.

Section 39 — Liability of FSO

Vexatious or unreasonable seizure, or other unjustified injurious acts in exercise of powers, can attract a penalty up to ₹1 lakh. A false complaint against an FSO, if proved false, attracts a fine of ₹50,000 to ₹1 lakh.

Section 40 — Purchaser may have food analysed

A purchaser other than an FSO may have food analysed on payment of the prescribed fee, after informing the FBO at purchase. If the report establishes non-compliance, the purchaser is entitled to refund of the analysis fee.

Section 41 — Search/seizure

An FSO may search and seize where there is reasonable doubt of involvement in a food offence, and must inform the Designated Officer. Relevant CrPC provisions apply as far as the Act permits.

Section 42 — Prosecution

```
FSO: inspect + draw sample + send to Food Analyst
                    ↓
Food Analyst: analyse + report within 14 days
                    ↓
Designated Officer: scrutinise report
                    ↓
Fine-only contravention → DO action
                    ↓
Imprisonment → recommendation to Commissioner
                    ↓
Commissioner: decides appropriate court
                    ↓
≤3 years → ordinary jurisdiction; >3 years → Special Court where established
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Section 42 is a process question. Memorise the order of authorities, not just isolated section numbers.

PART 8 | CHAPTER VIII — FOOD ANALYSIS

Sections 43–47

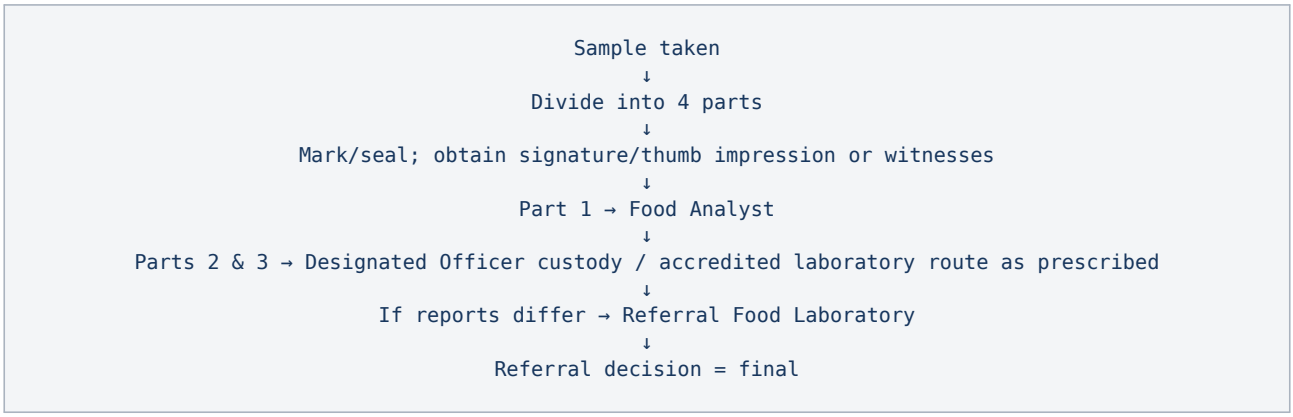
Section 43 — Laboratories

FSSAI may notify accredited food laboratories/research institutions and establish or recognise referral food laboratories.

Sections 45–46 — Food Analyst

Food Analysts analyse samples and provide reports using the prescribed sampling and analytical methodology.

Section 47 — Sampling procedure



Time / event	Requirement
Sample → Food Analyst	By the immediate succeeding working day
Food Analyst report	Within 14 days under Section 42
Seized article after report	Produce before Designated Officer as soon as possible and not later than 7 days after receipt of report, unless destroyed
Imported food	Authorised officer samples; notified laboratory Food Analyst report within 5 days

PART 9 | CHAPTER IX — OFFENCES & PENALTIES

Sections 48–67

Section 48 — General provisions relating to offences

Food may be rendered injurious by adding a substance, using an ingredient, abstracting constituents or subjecting food to a process/treatment with knowledge of sale/distribution. Safety assessment considers normal use, handling, consumer information, cumulative toxic effects and vulnerable consumers.

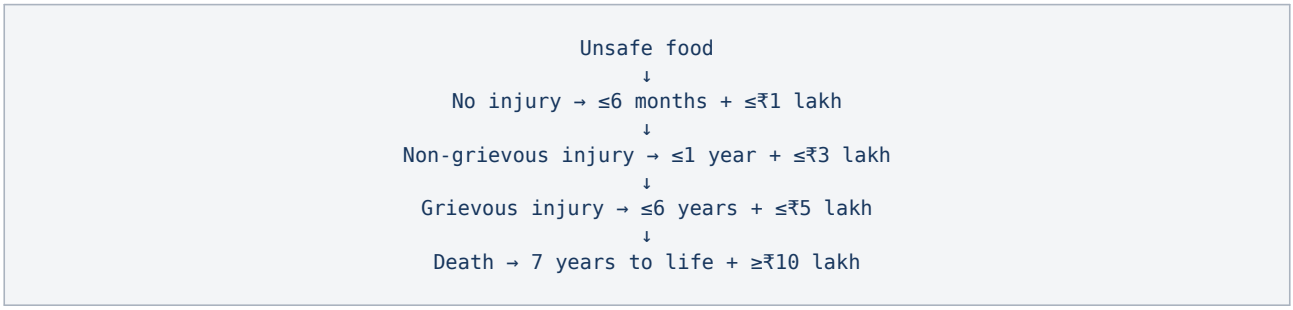
Section 49 — Factors for deciding penalty

> **MEMORY HOOK**
> G-L-R-K-O = Gain/unfair advantage → Loss → Repetition → Knowledge → Other relevant factor.

Penalty master table

Section	Offence	Maximum / punishment
50	Food not of demanded nature/substance/quality	Up to ₹5 lakh; specified petty FBO route up to ₹25,000
51	Sub-standard food	Up to ₹5 lakh
52	Misbranded food	Up to ₹3 lakh
53	Misleading advertisement	Up to ₹10 lakh
54	Extraneous matter	Up to ₹1 lakh
55	Failure to comply with FSO direction	Up to ₹2 lakh
56	Unhygienic/unsanitary processing/manufacturing	Up to ₹1 lakh
57	Adulterant — non-injurious	Up to ₹2 lakh
57	Adulterant — injurious	Up to ₹10 lakh
58	No specific penalty elsewhere	Up to ₹2 lakh
59	Unsafe food — no injury	Up to 6 months + fine up to ₹1 lakh
59	Unsafe food — non-grievous injury	Up to 1 year + fine up to ₹3 lakh
59	Unsafe food — grievous injury	Up to 6 years + fine up to ₹5 lakh
59	Unsafe food — death	7 years to life + minimum ₹10 lakh
60	Interfering with seized items	Up to 6 months + fine up to ₹2 lakh
63	Food business without required licence	Up to 6 months + fine up to ₹5 lakh

Section 59 — Unsafe food severity ladder



Sections 61–67

- 61 — False information.
- 62 — Obstructing/impersonating Food Safety Officer.
- 63 — Carrying on food business without required licence.
- 64 — Subsequent offences and enhanced consequences.
- 65 — Compensation to victim in specified unsafe-food outcomes.
- 66 — Offences by companies; responsible persons may also be liable subject to statutory defences.

- 67 — Import contraventions attract FSS Act penalties in addition to penalties under other applicable laws.

PART 10 | CHAPTER X — ADJUDICATION, TRIBUNAL & COURTS

Sections 68–80

Section 68 — Adjudication

State Government notifies an officer not below the rank of Additional District Magistrate as Adjudicating Officer. The person must receive a reasonable opportunity of representation. The officer has powers of a civil court for adjudication.

Section 69 — Compounding

The Commissioner may empower the Designated Officer to accept composition money from specified petty food operators. Maximum composition amount: ₹1 lakh. Offences punishable with imprisonment cannot be compounded.

Sections 70–71 — Appellate Tribunal

The Food Safety Appellate Tribunal hears appeals from Adjudicating Officer decisions. Its Presiding Officer must be or have been a District Judge. The Tribunal is guided by principles of natural justice and has specified civil-court-like powers.

Sections 72–80 — Courts and defences

Section	Core point
72	Civil court jurisdiction barred for matters entrusted to Adjudicating Officer/Tribunal; injunction restrictions apply.
73	Summary trial for offences not triable by Special Court; maximum imprisonment in summary conviction = 1 year.
74	Special Courts for specified serious offences; Public Prosecutor requires at least 7 years' advocacy/relevant legal experience.
76	Appeal from Special Court to High Court within 45 days; statutory bench requirement applies.
77	Ordinary cognizance limitation = 1 year; Commissioner may approve extended prosecution up to 3 years for recorded reasons.
78	Court may implead importer/manufacturer/distributor/dealer when evidence warrants.
79	Magistrate/court punishment powers subject to statutory limits.
80	Defences include due diligence/reasonable precautions in specified circumstances; mere mistaken reasonable belief is not a defence.

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High-yield appeal numbers: Tribunal → High Court = 60 days; Special Court → High Court = 45 days. Ordinary prosecution limitation = 1 year; extension = up to 3 years.

PART 11 | CHAPTER XI — FINANCE, ACCOUNTS & REPORTS

Sections 81–84

Section	Remember
81	Food Authority budget
82	Central grants + graded fees
83	Accounts and CAG audit
84	Annual report; laid before Parliament

PART 12 | CHAPTER XII — MISCELLANEOUS

Sections 85–101

Section	Core point
85	Central Government may issue directions to FSSAI on policy questions; FSSAI must furnish reports/returns.
86	Central Government may direct State Governments.
87	Specified authorities/officers are public servants.
88	Good-faith action protected.
89	FSS Act overrides inconsistent provisions in other food-related laws.
90	Transitional transfer of existing food-law employees; opt-out period specified in section.
91	Central Government makes rules.
92	Food Authority makes regulations with previous Central Government approval and previous publication.
93	Rules/regulations laid before Parliament for total 30 days.
94	State Government makes specified rules with previous publication and FSSAI approval.
95	Reward may be authorised for assistance in detecting offences/apprehending offenders.
96	Unpaid penalty recovered as arrear of land revenue; defaulting licence suspended until payment.
97	Repeal and savings.
98	Old standards continue until replaced by standards under the new framework.
99	Milk and Milk Products Order, 1992 deemed regulations under the Act.

Section	Core point
100	Amendments to Infant Milk Substitutes, Feeding Bottles and Infant Foods Act.
101	Central Government power to remove difficulties, subject to statutory time limit.

MEMORY HOOK
Rules → Central Government. Regulations → Food Authority. State rules → State Government subject to the Act/FSSAI framework.

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Section 89 = overriding effect. Section 96 = recovery as arrear of land revenue + licence suspension until payment.

PART 13 | HPSC FSO MASTER REVISION

Who does what?

Authority	Main role
FSSAI	National standards, regulation, science, risk, laboratories, guidance
Commissioner of Food Safety	State-level implementation, public-health powers, prosecution sanction for imprisonment cases
Designated Officer	District administration, licensing, reports/samples, prosecution-related action
Food Safety Officer	Field inspection, sampling, seizure, search and evidence collection
Food Analyst	Laboratory analysis and report
Referral Food Laboratory	Final analytical resolution where prescribed reports differ
Adjudicating Officer	Adjudicates contraventions/monetary penalties
Appellate Tribunal	Appeals from adjudication
Ordinary/Special Court	Criminal prosecution and punishment

Three instruments students confuse

Section	Instrument	Think
32	Improvement Notice	Improve/correct
33	Prohibition Order	Prohibit after statutory court process
34	Emergency Prohibition	Emergency health-risk intervention

Sub-standard vs misbranded vs unsafe

	Sub-standard	Misbranded	Unsafe
Core problem	Fails standard	False/deceptive identity or representation	Health risk/injury
Primary section	51	52	59
Penalty pattern	≤₹5 lakh	≤₹3 lakh	Severity-based

Most important numbers

Number	Fact
22	Members of Food Authority
1/3	Minimum women among members
3 years	Term
65	Chairperson age ceiling
62	Member age ceiling
3/year	CAC minimum meetings
14 days	Improvement notice minimum
15 days	Appeal against improvement notice
14 days	Food Analyst report
7 days	Produce seized article after report
5 days	Imported food analysis report
₹10 lakh	Misleading advertisement / injurious adulterant maximum
₹5 lakh	Sub-standard / demanded-quality maximum
₹3 lakh	Misbranded maximum
₹1 lakh	Extraneous matter / FSO liability maximum in relevant sections
₹2 lakh	FSO-direction failure / general penalty / other relevant provisions
60 days	Tribunal → High Court appeal
45 days	Special Court → High Court appeal
1 year	Ordinary prosecution limitation
3 years	Extended prosecution period
30 days	Rules/regulations laying period

Number	Fact
3 years	Section 101 difficulty-removal outer limit

High-probability HPSC questions

Q1 FSSAI was established under which section?

Answer: Section 4.

Q2 Who appoints the Food Safety Officer?

Answer: Commissioner of Food Safety — Section 37.

Q3 Who is the Designated Officer and what is the minimum rank?

Answer: District-level officer appointed by Commissioner; not below Sub-Divisional Officer — Section 36.

Q4 How many members are in the Food Authority?

Answer: 22 members, plus the Chairperson.

Q5 What is the FSO's core statutory power section?

Answer: Section 38.

Q6 Into how many parts is a normal sample divided under Section 47?

Answer: Four parts.

Q7 What happens when analytical reports are at variance?

Answer: Referral Food Laboratory analysis; its decision is final.

Q8 Maximum penalty for misleading advertisement?

Answer: Up to ₹10 lakh.

Q9 Maximum penalty for misbranded food?

Answer: Up to ₹3 lakh.

Q10 What is the punishment where unsafe food causes death?

Answer: 7 years to life imprisonment and minimum ₹10 lakh fine.

Q11 Who adjudicates monetary penalties?

Answer: Adjudicating Officer — not below Additional District Magistrate.

Q12 Can an imprisonment offence be compounded?

Answer: No.

Q13 Who makes Central rules?

Answer: Central Government — Section 91.

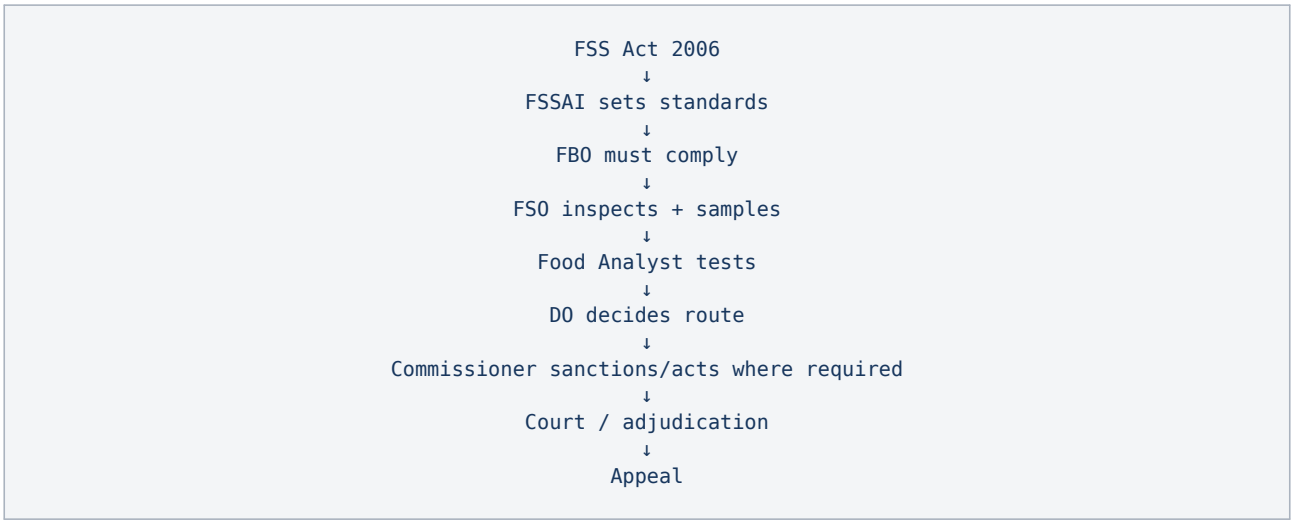
Q14 Who makes FSSAI regulations?

Answer: Food Authority, with previous Central Government approval — Section 92.

Q15 What is the overriding provision?

Answer: Section 89.

Final mental model


FSS Act 2006
↓
FSSAI sets standards
↓
FBO must comply
↓
FSO inspects + samples
↓
Food Analyst tests
↓
DO decides route
↓
Commissioner sanctions/acts where required
↓
Court / adjudication
↓
Appeal

Quick Revision — Last 10 Minutes

Read only this page immediately before attempting a section-number MCQ set.

Section	Trigger word
4	FSSAI
5	Composition
16	FSSAI functions
18	General principles
23	Labelling
24	Advertisement
26	FBO
28	Recall
30	Commissioner
31	Licence
32	Improvement
33	Prohibition
34	Emergency
36	Designated Officer
37	FSO
38	FSO powers
39	FSO liability
40	Purchaser analysis
41	Search/seizure
42	Prosecution
43	Laboratories
47	Sampling
49	Penalty factors
50–58	Penalties
59	Unsafe food
60	Seized item

Section	Trigger word
66	Company
67	Import
68	Adjudication
69	Compounding
70	Tribunal
71	Tribunal powers
72	Civil court
73	Summary trial
74	Special Court
76	High Court appeal
77	Limitation
80	Defences
89	Override
91	Central rules
92	FSSAI regulations
94	State rules
96	Recovery
97	Repeal
98	Transitory standards
101	Remove difficulties